



POLICE DEPARTMENT

March 5, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207435 (Incident Date: September 10, 2022) regarding Police Officer Piotr TandeK, Tax No. 966878 (DADS No. 2024-29814)

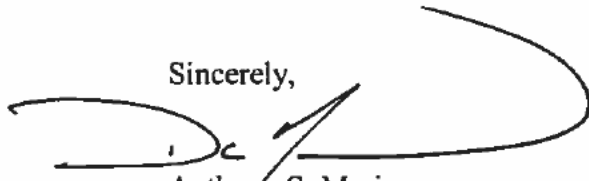
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207435, pertaining to Police Officer Piotr TandeK. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer TandeK would be detrimental to the Police Department's disciplinary process.

The CCRB substantiated allegations that Officer TandeK improperly entered and searched an apartment and threatened to arrest an individual without sufficiently developed probable cause. The Police Commissioner agrees with CCRB's finding that the officer's actions were improper. However, he also agrees with the CCRB in that the area of law and policy implicated in this matter are novel and complex, and the officer's limited experience and knowledge in this area are germane to the incident. Given Officer TandeK's lack of prior formal disciplinary history and lack of prior substantiated CCRB complaints, and in the interest of progressive discipline, the allegations against Officer TandeK are best addressed with the imposition of a command discipline.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

March 7, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Piotr Tandek
Disciplinary Case No.: 2024-29814

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 5, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and direct the issuance of a Command Discipline Schedule B for the alleged misconduct contained in CCRB’s Charges and Specifications dated January 29, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against Police Officer Tandek would be detrimental to the Police Department’s disciplinary process.” It is undisputed that Police Officer Tandek improperly entered and searched an apartment and threatened to arrest § 87(2)(b) without sufficient legal authority. However, CCRB disagrees with your determination that Police Officer Tandek’s “limited experience and knowledge in this area are germane to this incident” and that this justifies the misconduct in this case. Police Officer Tandek has been a member of service for over five (5) years and during that time, he has received extensive training on search and seizure law. Police Officer Tandek is or should be knowledgeable about search and seizure law at this point in his career and since the evidence in this case displays the exact opposite, Police Officer Tandek should be held accountable for this misconduct. In addition, assuming arguendo, even if, Police Officer Tandek did not know search and seizure law that well, Police Officer Tandek knows that he did not have the legal authority to threaten to arrest § 87(2)(b) and despite his lack of a disciplinary history, he should be disciplined for the misconduct in this case.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, the CCRB asserts that if given the opportunity to make its case through the disciplinary process, it would prove Police Officer Tandek guilty of all three (3) specifications contained in CCRB’s Charges and Specifications dated January 29,

2024. Therefore, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Tandek in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

March 8, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207435 (Incident Date: September 10, 2022) regarding Police Officer Piotr TandeK, Tax No. 966878 (DADS No. 2024-29814)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 7, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Police Officer Piotr TandeK, and nevertheless maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer TandeK for the reasons expressed in my March 5, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer TandeK be issued a Schedule “B” Command Discipline for the alleged misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office